102	Nguyen vs. Botros 24-01400928	Defendant, Dina Moussa, D.D.S. moves for an order sustaining her demurrer to the second cause of action of Plaintiff, Michelle Nguyen's First Amended Complaint. Dr. Moussa also moves for an order striking Plaintiff Michelle Nguyen's First Amended Complaint in its entirety, or alternatively, striking the punitive damage claim at paragraph 14(a)(2). "If the complaint is amended, a copy of the amendments shall be filed, or the court may, in its discretion, require the complaint as amended to be filed, and a copy of the amendments or amended complaint must be served upon the defendants affected thereby. The defendant shall answer the amendments, or the complaint as amended, within 30 days after service thereof, or such other time as the court may direct, and judgment by default may be entered upon failure to answer, as in other cases . . . ." (Code Civ. Proc. § 471.5.) Here, while it appears that Plaintiff, Michelle Nguyen, served a First Amended Complaint, no First Amended Complaint appears to have been filed with the Court. Because it appears that Plaintiff has not filed the First Amended Complaint with the Court, the Court is unable to rule on a pleading that is not part of the court's record. It appears that a motion to amend the complaint was attempted to be filed and rejected in December 2024. Since there is no first amended complaint, the demurrer and motion to strike the first amended complaint are taken off-calendar. *Clerk to give notice.*
103	Brown vs. Flagship Post Acute, LLC 24-01413162	Defendant Flagship Post Acute, LLC dba Pelican Ridge Post Acute (erroneously named dba Sun Mar Health Care) ("Defendant" or "FLAGSHIP") seeks an order compelling Plaintiff Patricia Brown ("Plaintiff") to arbitrate the controversy alleged in the Complaint. Defendant contends that Plaintiff entered into a binding voluntary arbitration agreement with Defendant on August 6, 2021, but Plaintiff has refused to submit to arbitration. Plaintiff contends that there is no agreement to arbitrate because Plaintiff denies ever signing

		or authorizing anyone to sign the arbitration agreement on her behalf. *Whether the FAA Applies?* Defendant contends that the Federal Arbitration Act ("FAA") applies to this action because it is a Medicare participant. Defendant presents evidence that it is "a skilled nursing facility and participates in and receives funding from Medicare and Medi-Cal programs"; that it "uses U.S. mail, telephone lines, wireless networks, and internet connections to conduct business"; and "obtains supplies from out-of-state venders and engages in transactions with financial institutions outside of California. (See Talebi Decl., ¶¶ 3 and 4.) Plaintiff, in Opposition, does not address the applicability of the FAA. The Federal Arbitration Act ("FAA") applies to any "contract evidencing a transaction involving commerce" which contains an arbitration clause. (*See Erickson v. Aetna Health Plans of California, Inc*. (1999) 71 Cal.App.4th 646, 650 (citing 9 U.S.C. § 2).) The Court finds that the FAA applies to this action. *Whether An Agreement to Arbitrate Exists?* Both the Federal Arbitration Act ("FAA") and the California Arbitration Act ("CAA") require the existence of a valid Arbitration Agreement, before arbitration can be compelled. (See 9 U.S.C. section 2; C.C.P. section 1281.2). Regardless of whether the FAA applies, "we apply general California contract law to determine whether the parties formed a valid agreement to arbitrate their dispute." (*Avery v. Integrated Healthcare Holdings, Inc.* (2013) 218 Cal.App.4th 50, 59-60). "In California, 'general principles of contract law determine whether the parties have entered a binding agreement to arbitrate.' [Citations omitted.] Generally, an arbitration agreement must be memorialized in writing. [Citation omitted.] A party's acceptance of an agreement to arbitrate may be express, as where a party signs the agreement. A signed agreement is not necessary, however, and a

		party's acceptance may be implied in fact [citation omitted] or be effectuated by delegated consent [citation omitted.]” (*Pinnacle Museum Tower Assn. v. Pinnacle Mkt. Dev. (US), LLC* (2012) 55 Cal.4th 223, 236.) “Because the existence of an agreement is a statutory prerequisite to granting the petition, the petitioner bears the burden of proving its existence by a preponderance of the evidence.” (*Rosenthal v. Great Western Fin. Securities Corp*. (1996) 14 Cal.4th 394, 413.) Once the petitioner has met that burden, the burden shifts to the party opposing the arbitration, to produce evidence to show by a preponderance “any fact necessary to the defense.” (*Id*.) “The party seeking arbitration can meet its initial burden by attaching to the petition a copy of the arbitration agreement purporting to bear the respondent’s signature. (*Bannister v. Marinidence Opco, LLC* (2021) 64 Cal.App.5th 541, 543-544). However, where “the respondent challenges the validity of the signature,” “the petitioner must ‘establish by a preponderance of the evidence that the signature was authentic.” (*Id*. at 544). Here, to meet Defendant’s initial burden of establishing an agreement to arbitrate exists between it and Plaintiff, Defendant presents the declaration of Lawrence Talebi who attests as follows: he is the Administrator for Defendant; Defendant’s Mutual Agreement to Arbitrate Claims (the “Arbitration Agreement”) “is one of the documents that is included in [its] new hire packet and provided to newly hired employees”; “It is standard practice for newly hired staff to receive a copy of the Arbitration Agreement in their new packet hire”; “When a new employee is hired, it is [Defendant’s] procedure to have each new employee attend an orientation session” during which “each document in the new hire packet, including the Arbitration Agreement is, thoroughly reviewed”; “When the employees return the new hire paperwork, [Defendant] verifies that there are complete copies of the required documents, including the employee’s Arbitration Agreement, in the new hire packet” and the “documents are also reviewed for

		employee information and signatures"; He is "aware that Plaintiff...was onboarded and hired by [Defendant] on or about August 6, 2021, and received [Defendant's] new hire packet, including the Arbitration Agreement"; Plaintiff did not ask any questions or voice any concerns about the Arbitration Agreement prior to her signing it or any time thereafter; "Plaintiff signed the Arbitration Agreement on August 6, 2021, which required Plaintiff to arbitrate all employment-related disputes arising from her employment with Defendant, including all claims included in this lawsuit"; He "reviewed the Plaintiff's Arbitration Agreement and also signed the Arbitration Agreement on August 6, 2021"; and "Attached hereto as Exhibit "A" is a true and correct copy of Plaintiff Dodson's Arbitration Agreement." (See Talebi Decl., ¶¶ 2, 4-10, Exh. A.) The moving party has the initial prima facie burden of proving the existence of an agreement by a preponderance of evidence (*Rosenthal v. Great Western Fin. Securities Corp* (1996) 14 Cal.4th 394, 413-414.) Here, Defendant has met that burden. If the moving party meets its initial prima facie burden and the opposing party disputes the agreement to arbitrate, the opposing party bears the burden of producing evidence to challenge the agreement. (*Condee v. Longwood Management Corp*. (2001) 88 Cal.App.4th 215, 219.) Plaintiff, in Opposition, disputes that she ever signed the Arbitration Agreement. Plaintiff attests that as follows: "I did not agree to arbitrate my disputes with Defendant nor was an arbitration agreement ever presented to me by Defendant at any time during my employment." (See Brown Decl., ¶ 6.) Plaintiff also attests: "The signature on the Arbitration Agreement is not my signature nor do I recall signing the Arbitration Agreement or authorizing any person to sign the Arbitration Agreement on my behalf either at the time I was employed in July 2021 or on August 6, 2021. I am informed and believe that Defendant fraudulently signed my name to the Arbitration Agreement after I began raising

		concerns with Human Resources and my supervisor and at about the time that Defendant intended terminate me." (See Brown Decl., ¶ 7.) Plaintiff states "the signature on the Arbitration Agreement is not my signature" (See Brown Decl., ¶ 9.) Plaintiff also submits evidence that when she requested a copy of her personnel file from Defendant on August 23, 2021, Defendant did not provide her with "Exhibit A" and was provide only a version of the Arbitration Agreement that was not signed by Defendant. (See Brown Decl., ¶ 8, Exhs. 1 and 2.) Plaintiff also submits evidence of how she normally signs her name which is not consistent with the signature on Exhibit A submitted by Defendant. (See Brown Decl., ¶ 9, Exh. 3.) Once the opposing party successfully challenges the signature, the burden then returns to the moving party to establish with admissible evidence and by a preponderance of the evidence that a valid arbitration agreement between the parties exists (*Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158.) Here, in the reply brief, Defendant contends it did authenticate Plaintiff's signature and that Mr. Talebi is the person who onboarded Plaintiff. Mr. Talebi submits a supplemental declaration attesting as follows: He is "Administrator at Flagship Post Acute, LLC dba Pelican Ridge Post Acute, erroneously named dba Sun Mar Health Care" ('Pelican Ridge Post Acute' or 'Defendant'); Defendant "acquired the skilled nursing facility, SSC Newport Beach Operating Company LP located at 466 Flagship Road, Newport Beach, CA 92663, on or about August 1, 2021"; "Plaintiff was initially hired and employed by SSC Newport Beach Operating Company LP. When Pelican Ridge Post Acquired SSB Newport Beach Operating Company LP, Pelican Ridge Post Acute offered employment to Plaintiff on or about August 1, 2021"; "[He] was present at Plaintiff's new hire orientation as an employee of Pelican Ridge Post Acute and was available and willing to explain any document in the new hire paperwork to Plaintiff."'; "Plaintiff did not ask

		me any questions or voice any concerns about the Arbitration Agreement prior to her signing, or at an any time thereafter"; "Plaintiff voluntarily signed the Arbitration Agreement on August 6, 2021"; "[W]hen the employees return the new hire paperwork, Pelican Ridge Post Acute verifies that there are complete copies of the required documents, including the employee's Arbitration Agreement, in the returned new hire paperwork"; "After receipt of an employee's returned new hire paperwork, including the Arbitration Agreement, copies of the returned new hire paperwork are created"; "A copy of Plaintiff's returned new hire paperwork was created upon receipt of Plaintiff's returned new hire paperwork on August 6, 2021"; "[He] reviewed Plaintiff's executed Arbitration Agreement and signed the Arbitration Agreement on August 6, 2021"; "A copy of the Arbitration Agreement containing only Plaintiff's signature was inadvertently produced to Plaintiff on or about October 6, 2021"; and "Attached as Exhibit A is a true and correct copy of Plaintiff Brown's fully executed Arbitration Agreement." (See Supp. Decl. of Talebi, ¶¶ 2-13, Exh. A.) Defendant also submits the Supplemental Declaration of Christie Yang, Esq., who attaches excerpts from Plaintiff's new hire paperwork which includes an "Employee Acknowledgement of the Medical Provider Network" signed by Plaintiff on August 2, 2021, an "Employee Acknowledgment and Consent Regarding Use of and Access to Company-Provided Electronic Resources Form" also signed by Plaintiff on August 2, 2021, and the signature page only of an agreement signed by Plaintiff on August 6, 2021. (See Yang Decl., ¶ 6, Exh. B.) Defendant meets its burden set forth by *Gamboa* by filing the Supplemental Declaration of Mr. Talebi and the Supplemental Declaration of Ms. Yang. In reviewing the signatures, they look sufficiently similar for the Court to find by a preponderance of the evidence that Defendant has met its burden of establishing an agreement to arbitrate exists. Therefore, the Motion is GRANTED. Plaintiff does not raise any other defense to the

		enforcement of the Arbitration Agreement in her Opposition, she only contended that she did not execute the Arbitration Agreement. The Court vacates the Case Management Conference and sets an ADR Review Hearing for 10/23/2025 at 1:30 p.m. *Moving Party is to give notice.*
104	Starbuzz Tobacco, Inc. vs. Abboud 23-01303979	Plaintiff/Cross-Defendant Starbuzz Tobacco, Inc. moves to compel Defendant/Cross-Complainant Repripe Trading, Inc. and Defendant Christopher Abboud to serve supplemental responses to Plaintiff's first set of Demands for Production of Documents. On 3/20/25, the Court denied Defendants' motion for relief from waiver of objections as to the Demands for Production of Documents, with the exception that tax records need not be produced. (ROA No. 221.) After the Court's ruling, Defendants served supplemental responses to the Demands on 4/4/25 and argue that the Motions should now be denied as moot. Defendants' supplemental responses to Nos. 4 and 26 do not include any objections. Further, Plaintiff represents that the supplemental response to No. 31 is sufficient. Thus, the Motions as to those demands are DENIED. However, in response to No. 32, Repripe continues to assert objections based on privacy. This demand does not seek any tax documents. It seeks "income statements, balance sheets, and a general ledger for Repripe. On March 20, 2025, the Court ordered that tax records do not need to be provided. The request does not seek "tax records." Therefore, the Court finds Repripe's continued assertion of objections to be unwarranted. Further, Repripe represents that responsive documents are believed to be in possession of its Certified Public Accountant. This representation of inability to comply because the documents are not within Repripe's possession is disingenuous. Even if Repripe does not have its own copies of the documents and those copies are in the possession of its CPA, Repripe has custody and control over those documents and can obtain them from its CPA for production.